

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
KIMBERLY BERNARD,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER PATRICK GROSS,
TAX ID #958657 AND POLICE OFFICER JOHN DOE
(FICTITIOUS NAME BECAUSE HIS IDENTITIY IS
UNKNOWN), BOTH OFFICERS BEING SUED AS
POLICE OFFICERS AND IN THEIR INDIVIDUAL
CAPACITIES,

Defendants.
-----X

To the above-named Defendant(s):

SUMMONS

Index No.:

Date Purchased:

Plaintiff designates New
York County as the place of
trial.

The basis of venue is New
York County is the place
where the cause of action
arose.

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve
a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of
appearance, on the Plaintiff's Attorney with twenty (20) days after the service of this summons,
exclusive of the day of service (30) days after the service is complete if the summons is not
personally delivered to you within the State of New York; and in case of your failure to appear or
answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
August 26, 2021


ROYCE RUSSELL, ESQ.
R-SQUARE, ESQ. PLLC.
Attorneys for the Plaintiff
112 West 34TH Street #18 Fl.
New York, New York 10120
(718) 785-8890

Defendants' addresses:

City of New York
Office of the Corporation Counsel
100 Church Street, 4th floor
New York, New York 10007

New York City Police Department
One Police Plaza
New York, N.Y. 10007

Police Officer Patrick Gross,
Tax ID #958657
c/o Strategic Response Group 1
524 W 42nd Street
New York, NY 10036

Police Officer John Doe
Identity Unknown

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
KIMBERLY BERNARD,

Plaintiff,

VERIFIED COMPLAINT

Index #:

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER PATRICK GROSS,
TAX ID #958657 AND POLICE OFFICER JOHN DOE
(FICTITIOUS NAME BECAUSE HIS IDENTITIY IS
UNKNOWN), BOTH OFFICERS BEING SUED AS
POLICE OFFICERS AND IN THEIR INDIVIDUAL
CAPACITIES,

Defendants.

-----X

The Plaintiff, Kimberly Bernard, as and for a Verified Complaint filed by her Attorney, R-SQUARE, ESQ. PLLC., complaining of the Defendants, respectfully shows to the court and alleges:

1. Upon information and belief, that at all times hereinafter mentioned, the Defendant, the City of New York, hereinafter referred to as "City", was and still is a municipal corporation duly organized and existing under, and by virtue of, the laws of the State of New York.
2. Upon information and belief, at all times hereinafter mentioned, the Defendant, "City", including its agents, servants and/or employees operated, maintained and controlled the New York City Police Department, hereinafter referred to as "NYPD", including all the police officers therein.
3. Upon information and belief, at all times hereinafter mentioned, and on the 12th day of September 2020, Police Officers Patrick Gross and John Doe (hereinafter referred to respectively as "Gross" and "Doe" and collectively as the "Officers") were employed as Police Officers by the "City" and/or "NYPD", and at all relevant times set forth below acted in the capacity of police officer(s) and employee(s) of the City of New York.
4. Upon information and belief, at all times hereinafter mentioned, and on the 12th day of September 2020, Police Officer Doe, whose identity is presently unknown, was employed as a Police Officer by the "City" and/or "NYPD", and at all relevant times set forth below acted in the capacity of police officer and employee of the City of New York.

5. Kimberly Bernard, hereinafter referred to as “Plaintiff” or “Bernard,” at all relevant times hereunder, was a resident of New Jersey.
6. On September 12, 2020, at the approximate hour of 9:00 pm, the Plaintiff was lawfully at the 34th Precinct, 4295 Broadway, County of New York within the State of New York. At said location, Plaintiff, a Co-Founder of Black Women’s March was attending a protest concerning Police Violence against African Americans.
7. At said protest, the Plaintiff was ordered to walk on the sidewalk when she was then forcibly grabbed by an unknown Officer and placed in handcuffs as he said “This one”.
8. Plaintiff was directly targeted to be falsely arrested which was highlighted by the Officer saying, “This one”. The Officer’s conduct was planned, and the plan was to arrest the Plaintiff and in fact she was arrested. Just prior to her arrest, the Plaintiff was speaking on a mega-phone protesting police violence.
9. The Plaintiff was then suddenly surrounded by numerous Officers including Gross and Doe, preventing anyone from making contact with her.
10. The circle around the Plaintiff ensured she could not leave the custody of the Officers. As the Plaintiff was handcuffed, the Plaintiff was also held from behind by her shoulders and arms by the Officers.
11. The grip the Defendants had on the Plaintiff was so tight that her shoulders/arms, and limbs were burning and she sustained bruising as a result.
12. The Plaintiff was handcuffed so tight she sustained swelling to her wrists as well as bruising. Plaintiff was then transported to the 34th Precinct and then eventually to the 7th Precinct.
13. Plaintiff requested medical treatment, but her requests were met with sarcasm and/or ignored.
14. Plaintiff was imprisoned for at least three (3) hours before receiving a Desk Appearance Ticket (DAT).
15. As a result of the false arrest, the Plaintiff’s wrists were swollen for approximately five (5) days and she sustained pain and suffering to her shoulder during that same time period.
16. Plaintiff endured pain and suffering from bruising and soreness for the next couple of days and was confined to her home for 48 hours because of the physical, emotional and mental effect of her false arrest.

17. All aforementioned conduct was committed by the City of New York, their agents, servants and/or employees, while acting within the scope of their employment.
18. At all relevant times herein, “Gross” and “Doe” were present, assisted and/or witnessed said conduct and failed to intervene, stop, or mitigate it.
19. The Plaintiff was falsely charged with the crimes of Disorderly Conduct; among two other charges.
20. The DAT and/or Criminal Complaint was issued by “Gross” and/or “Doe” for the purpose of prosecuting the Plaintiff.
21. The DAT contained false statements by “Gross” and/or “Doe”.
22. That notice of the Plaintiff’s claim and notice of intention to sue for damages which set forth the nature of the claim, the date of, the time when, the place where and the manner in which the claim arose were duly served upon the Comptroller of the Defendant “City” and the Corporation Counsel of the City of New York. Said Notice included a Notice to Preserve Evidence.
23. The oral examination of the Plaintiff, Kimberly Bernard, was conducted on February 18, 2021 in accordance with Section 50-H of the General Municipal law.
24. That more than 30 days have elapsed since the notice of claim and intention to sue has been served upon the Defendants, and the said Defendants have neglected or refused to make any adjustment or payment thereof.
25. That the action is commenced within one year and 90 days after the cause of action arose.
26. It is hereby alleged, pursuant to CPLR 1603, that the action is exempt from the operation of CPLR §1601 from the operation of CPLR §1601, by reason of one or more of the exemptions provided in CPLR §1602.
27. That the action is commenced within one year and 90 days after the cause of action arose.
28. It is hereby alleged, pursuant to CPLR §1603, that the action is exempt from the operation of CPLR §1601 by reason of one or more of the exemptions provided in CPLR §1602.

**AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF FOR
BATTERY AND ASSAULT AGAINST THE DEFENDANTS**

29. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "28" with the same force and effect as if more fully and at length set forth herein.
30. That on September 12, 2020, at approximately 9:00 p.m., at the "location", the Plaintiff, without provocation and while not committing any crime, was grabbed, battered and handcuffed by "Gross" and/or "Doe" with the assistance and in the presence of other Officers not named in this Complaint.
31. That on September 12, 2020, at approximately 9:00 p.m., outside the 34th Precinct, the Plaintiff was unlawfully detained, arrested, imprisoned and ignored when she complained about her medical well-being which resulted in her seeking medical treatment after her release.
32. Said act(s) occurred while in the performance of the Defendants' duties as police officers.
33. That all said contact was committed without Plaintiff's permission or consent.
34. That the contact was unlawful, excessive and without privilege.
35. That all contact committed by Defendants through their agents, servants, and/or employees, including the above-named Defendants, was offensive to the Plaintiff and caused her to fear further contact and imminent harm, and caused the Plaintiff to sustain physical injury.
36. That the above acts committed by the Defendants constituted a battery; assault and/or excessive force against the Plaintiff.
37. That by reason of the aforesaid, the Plaintiff has been damaged in a sum exceeding the jurisdictional limits of lower courts.

**AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF
FOR FALSE IMPRISONMENT AGAINST THE DEFENDANTS**

38. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "37" with the same force and effect as if more fully and at length set forth herein.
39. That the Defendants, their agents, servants and/or employees acted with intent to imprison

the Plaintiff.

40. That the Defendants were present and knew that the Plaintiff did not commit the crimes of which she was accused, yet, they nevertheless arrested and imprisoned the Plaintiff and/or remained silent to her arrest.
41. That the Plaintiff, without her consent or just cause, was taken into custody and held against her will until she was released at least three (3) hours later.
42. That by reason of the aforesaid, the Plaintiff has been damaged in a sum exceeding the jurisdictional limit of the lower court.

**AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF
THE PLAINTIFF FOR FALSE ARREST AGAINST THE DEFENDANTS**

43. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "42" with the same force and effect as if more fully and at length set forth herein.
44. That the Defendants, their agents, servants and/or employees acted with intent to arrest the Plaintiff.
45. That the Plaintiff, without her consent or just cause, was taken into custody, arrested, and held against her will until released.
46. That the Defendants knew that they did not have probable cause to arrest the Plaintiff.
47. That by reason of the aforesaid, the Plaintiff has been damaged in a sum exceeding the jurisdictional limit of the lower court.

**AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF
THE PLAINTIFF FOR EXCESSIVE FORCE AGAINST THE DEFENDANTS**

48. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "47" with the same force and effect as if more fully and at length set forth herein.
49. That as stated above, the Defendants engaged in excessive force in that they grabbed and twisted the Plaintiff's limbs/arms and shoulders and used force that was beyond the

minimum degree of force necessary to subdue or control the Plaintiff.

50. That some of the aforementioned contact occurred while the Plaintiff was in handcuffs.

51. That by reason of the aforesaid, the Plaintiff has been damaged in a sum exceeding the jurisdictional limit of the lower court.

AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF
THE PLAINTIFF FOR VIOLATION OF NEW YORK STATE CIVIL RIGHTS LAW
SECTION 28 AGAINST THE DEFENDANTS FOR FAILURE TO PROVIDE MEDICAL
TREATMENT

52. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "51" with the same force and effect as if more fully and at length set forth herein.

53. Defendants "Gross" and/or "Doe" while acting in their capacity as police officers violated Plaintiff's New York State Civil Rights Law section 28 by breaching their duty to provide medical attention/treatment to a person who was under arrest or in police custody.

54. Defendants "Gross" and/or "Doe" while acting in their capacity as police officers violated Plaintiff's New York State Civil Rights Law section 28 by breaching their duty to provide attention to Plaintiff's health needs for such a person who was under arrest or in police custody.

55. The Defendants "Gross" and/or "Doe" while acting in their capacity as police officers by breaching their duty to provide medical aid and/or allow others to provide aid violated Plaintiff's New York State Civil Rights pursuant to Section 28.

56. The Defendants "Gross" and/or "Doe" were grossly negligent/negligent in failing to provide medical treatment to the Plaintiff despite her complaints concerning the tightness of the handcuffs and pain to her limbs-arms/shoulders as the Defendants provided no medical treatment.

57. The Defendants "Gross" and/or "Doe" were deliberate in failing to provide medical treatment to the Plaintiff as she was detained in their custody.

58. The Defendants "Gross" and/or "Doe" were deliberately indifferent in providing medical treatment to the Plaintiff as they gave no medical attention and/or treatment to the Plaintiff.

59. Defendants “Gross” and/or “Doe” failed to provide medical care to the Plaintiff who was in custody and or under arrest and that failure violated the Plaintiff’s New York State Civil Right Law section 28.
60. By reason of the forgoing, the Plaintiff, demands judgment for negligent hiring and retention against Defendant City, NYPD and “Gross” and/or “Doe”.
61. That by reason of the aforesaid, the Plaintiff has been damaged in a sum exceeding the jurisdictional limit of the lower court.

**AS AND FOR A SIXTH CAUSE OF ACTION ALLEGING VIOLATION OF
CONSTITUTIONAL RIGHTS UNDER 42 U.S.C. SECTIONS 1983 AND 1988, BY
“GROSS” AND “DOE” FOR VIOLATION OF 4TH AMENDMENT FOR ILLEGAL
SEIZURE AND USE OF FORCE AND USE OF EXCESSIVE FORCE**

62. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "61" with the same force and effect as if more fully and at length set forth herein.
63. That at all times hereinafter mentioned, and on September 12, 2020, Defendant “Gross, and/or Doe” were employed by the Defendant City, and/or NYPD, and were acting under the color of their official capacity and each of their acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York, i.e. color of law.
64. That at all times, “Gross” and/or “Doe” were acting pursuant to orders, directives, training, supervision and guidelines from Defendant City.
65. That during all times hereinbefore and hereinafter mentioned, “Gross” and/or “Doe” acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and/or New York City Police Department and that they acted under the color and pretense of law, and engaged in the illegal conduct set forth in the complaint to the injury of the Plaintiff, and deprived him of the rights, privileges and immunities secured to him by the First, Fourth, and Fourteenth Amendments to the Constitution of the United States and the laws of the United States, and State of New York and U.S.C. Section 1983 and 1986.
66. That on the date, at the time and location set forth in the Complaint at the 34th Precinct, the Plaintiff was lawfully exercising her First Amendment right and to question and/or object to police actions.

67. That the Plaintiff was not interfering with their official functions.
68. Upon information and belief, “Gross” and/or “Doe” acting with, or in the presence of and with the assent of “Gross” and/or “Doe”, used physical force and/or excessive force against the Plaintiff, in that the Plaintiff was grabbed, wrestled about her body and forcibly handcuffed.
69. That as a direct proximate result of the aforementioned actions, the Plaintiff was illegally seized and subjected to physical injury and excessive force.
70. That by reason of the aforesaid, the Plaintiff, has been damaged in a sum of exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus, punitive damages, costs, attorney’s fees, expert fees, and interest as set forth and provided by 42 U.S.C. Sections 1983 and 1988, and such other relief as to the court may seem just and proper.

AS AND FOR A SEVENTH CAUSE OF ACTION

ALLEGING VIOLATION OF CONSTITUTIONAL RIGHTS

UNDER 42 U.S.C. SECTIONS 1983 and 1988, BY “GROSS” AND “DOE”

FOR VIOLATION OF THE FIRST AMENDMENT RIGHTS

71. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "70" with the same force and effect as if more fully and at length set forth herein.
72. That at all times hereinafter mentioned, and on September 12, 2020, Defendants “Gross” and/or “Doe” were employed by the Defendant City, and/or the NYPD, and each were acting under the color of their official capacity, and their acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York, i.e. color of law.
73. That at all times set forth herein, “Gross” and/or “Doe” were acting pursuant to orders, directives, training, supervision and guidelines from Defendant City.
74. That during all times hereinbefore and hereinafter mentioned, “Gross” and/or “Doe” acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and/or New York City Police Department, and that they acted under the color and pretense of law, and engaged in the illegal conduct set forth in the complaint to the injury of the Plaintiff, and deprived her of the rights, privileges and immunities secured to her by the First and Fourteenth Amendment to the Constitution of the United States and the laws of the United States, and State of New York

and U.S.C. Sections 1983 and 1986.

75. That on the date, time and place stated in the Complaint herein, the Plaintiff was subjected to a physical attack by, upon information and belief, "Gross" and/or "Doe" in the presence of other officers in an attempt to punish the Plaintiff for objecting to police misconduct.
76. That as a direct proximate result of the Defendants' actions, the Plaintiff was physically injured.
77. That by reason of the aforesaid, the Plaintiff, has been damaged in a sum of exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus, punitive damages, costs, attorney's fees, expert fees, and interest as set forth and provided by 42 U.S.C. Sections 1983 and 1988, and such other relief as to the court may seem just and proper.

AS AND FOR AN EIGHTH CAUSE OF ACTION
ALLEGING VIOLATION OF CONSTITUTIONAL RIGHTS
UNDER 42 U.S.C. SECTIONS 1983 AND 1988, BY "GROSS" AND "DOE" FOR
FAILING TO INTERVENE AND MITIGATE AND FOR VIOLATING PLAINTIFF'S
RIGHT TO EQUAL PROTECTION UNDER THE LAW

78. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "77" with the same force and effect as if more fully and at length set forth herein.
79. That at all times hereinafter mentioned, and on September 12, 2020, Defendants "Gross" and/or "Doe" were employed by the Defendant City, and/or the NYPD, and each was acting under the color of her/her/their official capacity and her/his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York, i.e. color of law.
80. That at all times, "Gross" and/or "Doe" were acting pursuant to orders, directives, training, supervision and guidelines from Defendant City.
81. That during all times hereinbefore and hereinafter mentioned, "Gross" and/or "Doe" acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and/or New York City Police Department and that he/she/they acted under the color and pretense of law, and engaged in the illegal conduct set forth in the complaint to the injury of the Plaintiff, and deprived her of the rights, privileges and immunities secured to her by the First, Fourth, and Fourteenth

Amendments to the Constitution of the United States and the laws of the United States, and State of New York and U.S.C. Sections 1983 and 1986.

82. That all New York City Police Officers have and at all relevant times set forth herein, had a duty, pursuant to Police Patrol Guidelines to use a minimum degree of force.
83. That all New York City Police Officers have and at all relevant times set forth herein, had a duty, pursuant to Police Patrol Guidelines to intervene, stop and/or mitigate officers when they observe the use of excessive force.
84. That all New York City Police Officers have and at all relevant times set forth herein, had a duty, pursuant to Police Patrol Guidelines to report misconduct of a fellow police officer.
85. Upon information and belief, on September 12, 2020 "Gross" and/or "Doe" observed and/or assisted "THE OTHER NAMED OFFICER" illegally seize the Plaintiff.
86. Upon information and belief, "Gross" and/or "Doe" observed "THE OTHER NAMED OFFICER" use and/or assisted in the use of excessive force, had the ability to stop the use of excessive force and failed to do so.
87. That upon information and belief, the Defendants "Gross" and/or "Doe" failed to report said misconduct of their fellow officer, and/or failed to provide the Plaintiff with equal protection under the law.
88. That as a direct proximate result of the Defendants' actions, the Plaintiff was subjected to physical injury.
89. That by reason of the aforesaid, the Plaintiff, has been damaged in a sum of exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus, punitive damages, costs, attorney's fees, expert fees, and interest as set forth and provided by 42 U.S.C. Sections 1983 and 1988 against each named Defendant, and such other relief as to the court may seem just and proper.

AS AND FOR A NINTH CAUSE OF ACTION
ALLEGING VIOLATION OF CONSTITUTIONAL RIGHTS
UNDER 42 U.S.C. SECTIONS 1983 AND 1988, AGAINST "GROSS" AND "DOE" FOR
FALSE ARREST

90. Plaintiff repeats, reiterates and realizes each and every allegation contained in paragraphs marked "1" through "89" with the same force and effect as if more fully and at length set

forth herein.

91. The actions of the Defendant Officers violated the Plaintiff's rights under the Fourth and Fourteenth Amendments to the United States Constitution to be free from unlawful arrest and false imprisonment.
92. That by reason of the aforesaid, the Plaintiff, has been damaged in a sum of exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus, punitive damages, costs, attorney's fees, expert fees, and interest as set forth and provided by 42 U.S.C. Sections 1983 and 1988, under each cause of action against each named Defendant, and such other relief as to the court may seem just and proper.

AS AND FOR A TENTH CAUSE OF ACTION ALLEGING VIOLATION OF
CONSTITUTIONAL RIGHTS UNDER 42 USCA §§ 1983 FOR FAILURE TO PROVIDE
MEDICAL ATTENTION AGAINST "GROSS AND DOE" INDIVIDUALLY AND AS
POLICE OFFICERS

93. That Plaintiff repeats, reiterates and realizes each and every allegation contained in paragraphs marked "1" through "92" with the same force and effect as if more fully and at length set forth herein.
94. Defendants "Gross" and "Doe" while acting in their capacities as police officers violated Plaintiff's Eight Amendment right to provide medical attention/treatment by breaching their duty to provide medical attention/treatment to a person who was under arrest or in police custody.
95. Defendants "Gross" and "Doe" while acting in their capacities as police officers violated Plaintiff's Eight Amendment Right by breaching their duty to provide attention to Plaintiff's physical health needs for such a person who was under arrest or in police custody.
96. The Defendants "Gross" and "Doe" while acting in their capacity as police officers by breaching their duty to provide medical aid, mental aid and/or allow others to provide aid.
97. The Defendants "Gross" and "Doe" were grossly negligent/negligent in failing to provide medical treatment to the Plaintiff as she was detained in their custody and they did not give the Plaintiff medical attention and/or treatment.

98. The Defendants “Gross” and “Doe” were deliberate in failing to provide medical treatment to the Plaintiff as they continued to perform other police duties and among themselves as the Plaintiff’s requests for medical treatment were ignored.
99. The Defendant Officers were deliberately indifferent as to the medical needs/treatment of Plaintiff as they continued to perform other police duties.
100. Defendants “Gross” and “Doe” failed to provide medical care to the Plaintiff who was in custody and or under arrest and that failure violated Plaintiff’s Eight Amendment.
101. The Eight Amendment requires prisoners and others in police custody to be provided with adequate care.
102. Failure to provide medical attention; medical treatment, and mental attention violated the Plaintiff’s Eight Amendment of the Constitution which requires the duty to provide medical attention to a civilian in police custody.
103. The Plaintiff seeks damages as well as attorney’s fees, costs and punitive damages pursuant to 42 USCA §§ 1983-Eight Amendment Constitutional violation.
104. By reason of the foregoing, the Plaintiff, individually demands judgment for civil rights violation against the Defendants City, NYPD and the Defendant Officers collectively in a sum exceeding the jurisdictional limits of all lower court.

WHEREFORE, the plaintiff seeks judgment on the First through the Ninth causes of action for compensatory damages, punitive damages on the Federal causes of action under 42 USC 1983, 1988 as to the named Defendant police officers, legal fees pursuant to 42 USC 1988 and any other appropriate statute or at common law, expert fees, costs, interest at the legal rate, disbursements, as requested against the named Defendants and such other and further relief as to the court seems just and proper.

DATED: New York, New York
August 26, 2021



ROYCE RUSSELL, ESQ.
R-SQUARE, ESQ. PLLC.
Attorneys for the Plaintiff
112 West 34th St. #18Fl.
New York, New York 10120
212-785-8890

ATTORNEY'S VERIFICATION

The undersigned, an attorney admitted to practice in the Courts of the State of New York certifies as follows:

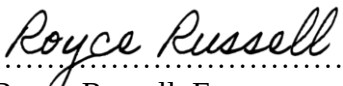
That I am an attorney associated with the law firm of R-SQUARE, ESQ. PLLC., the attorneys of record for the Plaintiff in the within action; that I have read the foregoing Summons and Complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters, I believe them to be true.

The undersigned further states that the reason the Summons and Complaint is made by me and not by the Plaintiff is that the Plaintiff does not reside within the county in which my office is located.

The grounds of my belief as to all matters stated upon my knowledge are my interviews with the Plaintiff and a reading of the documents in my case file.

The undersigned affirms that the foregoing statements are true, under the penalty of perjury.

Dated: New York, New York
August 26, 2021


.....
Royce Russell, Esq.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

KIMBERLY BERNARD,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER
PATRICK GROSS, TAX ID #958657 AND POLICE OFFICER JOHN DOE (FICTITIOUS
NAME BECAUSE HIS IDENTITIY IS UNKNOWN), BOTH OFFICERS BEING SUED AS
POLICE OFFICERS AND IN THEIR INDIVIDUAL CAPACITIES,
Defendants.

SUMMONS WITH VERIFIED COMPLAINT

R-SQUARE, ESQ. PLLC.

Attorney for Plaintiff

112 West 34TH Street Fl. 18

New York, NY 10120

(718) 785-8890

To: City of New York
c/o Office of the Corporation Counsel
100 Church Street
New York, NY 10007

Police Officer Patrick Gross
Tax ID #958657
c/o Strategic Response Group 1
524 W 42nd Street
New York, NY 10036

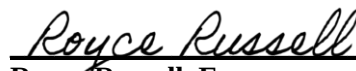
The New York City Police Department
1 Police Plaza
New York, New York 10007

Police Officer John Doe
Identity Unknown

Pursuant to 22 NYCRR 130-1.0, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: August 26, 2021

Signature


Royce Russell, Esq.

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PLEASE TAKE NOTICE

- ☐ NOTICE OF ENTRY
that the within is a (certified) true copy of a duly entered in the office of the
clerk of the within named court on
- ☐ NOTICE OF SETTLEMENT
that a of which the within is a true copy
will be presented for settlement to the HON. one of the judges of the, on